

PETITION - OKLAHOMA TRAFFICKING-SURVIVOR RELIEF PETITION UNDER Sec. 19C

IN THE COURT

(the Oklahoma district court for the district or county holding the relevant arrest information)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

OKLAHOMA TRAFFICKING-SURVIVOR RELIEF PETITION UNDER Sec. 19C

A. BASIS AND LIMITED RELIEF

The petitioner asks for relief under 22 O.S. Sec. 19c for the prostitution-related charge or conviction identified below. The petitioner must establish that the offense was committed as a result of being a victim of human trafficking and that good cause supports expungement.

Relief is not automatic and does not extend to every offense connected to trafficking. An order under section 19c seals only the identified records from public access, preserves access by law enforcement, and vacates no conviction.

This petition is addressed to an Oklahoma district court. The ordinary filing destination is the district court for the district or county holding the relevant arrest information. Item C1 supplies the actual court and county from the existing record.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below identifies this section 19c matter. Fill the court-record items from the existing court file. Complete the causal, good-cause, requested-relief, evidence-identification and agency items only with legal aid or an attorney. Do not write a survivor narrative on this petition.

[C1 - existing court and county] The Oklahoma court and county where the prostitution-related case was filed.

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[C2 - existing case number] The case number of that prostitution-related case.

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[C3 - prostitution-related offense] The exact prostitution-related offense or charge, including the count and statute if the court record states them.

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[C4 - disposition and date] The disposition of that offense or charge, and the date the court entered it.

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[C5 - trafficking and causal connection] The statement legal aid or an attorney advises that the identified offense was committed as a result of the petitioner being a victim of human trafficking. State only the connection counsel advises stating. Do not write an account of what was done to you.

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[C6 - good-cause grounds] The grounds legal aid or an attorney advises the petitioner to state as good cause for expunging the identified record under section 19c.

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[C7 - relief requested under section 19c] The exact relief under 22 O.S. Sec. 19c that legal aid or an attorney advises the petitioner to request for the identified record.

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[C8 - trafficking nexus evidence] Identify the trafficking-nexus evidence legal aid or an attorney selected by its document or evidence type, title or date, and issuer or holder. Do not write an account of the trafficking or attach a survivor narrative here.

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[C9 - persons and agencies to be notified] The prosecuting agency, the arresting agency, the Oklahoma State Bureau of Investigation and any other person or agency the court should notify, as counsel or the court clerk identifies them for this record.

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D. THE REQUEST

The petitioner asks the Court to grant, for good cause under 22 O.S. Sec. 19c, the relief identified in item C7 for the prostitution-related record identified in items C1 to C4, on the connection stated in item C5, the grounds stated in item C6, and the evidence identified in item C8 and submitted as counsel advises.

The petitioner asks the Court to set this matter for hearing and to provide the notice 22 O.S. Sec. 19 requires to the persons and agencies listed in item C9. The petitioner gives no notice and certifies none; the court arranges the notice.

The petitioner does not ask the Court to vacate any conviction. An order under section 19c seals records from public access but does not make them unavailable to law enforcement. A proposed order under section 19c is submitted with this petition.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed, dated or sworn for the petitioner, and every factual statement in section C is the petitioner's own.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

PROPOSED ORDER - OKLAHOMA TRAFFICKING-SURVIVOR RELIEF UNDER Sec. 19C

IN THE COURT

(the Oklahoma district court for the district or county holding the relevant arrest information)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

PROPOSED ORDER UNDER 22 O.S. Sec. 19C

This is a proposed order, submitted with the petition for the Court's consideration. It has no effect unless the Court signs it, and nothing on it is signed or dated for the Court.

On the petition brought under 22 O.S. Sec. 19c, and on the notice provided under 22 O.S. Sec. 19, the Court finds good cause and ORDERS as follows.

1. This order is entered under 22 O.S. Sec. 19c.

[O1 - records this order covers] The records to be expunged, identified exactly as items C1 to C4 of the petition identify them, as legal aid or an attorney advises stating them here.

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[O2 - persons and agencies this order is directed to] The persons and agencies the order binds, identified as item C9 of the petition identifies them, as legal aid or an attorney advises stating them here.

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2. The records identified above are expunged under 22 O.S. Sec. 19c and are sealed from public access.

3. This order does not make those records unavailable to law enforcement.

4. This order vacates no conviction and makes no finding beyond the expungement section 19c authorises.

DATE JUDGE OF THE DISTRICT COURT

(The Court signs and dates this order, or does not. Nothing on this page is signed or dated for the Court, and nothing on it is signed for the petitioner.)

FILING INSTRUCTIONS - OKLAHOMA TRAFFICKING-SURVIVOR RELIEF PETITION UNDER Sec. 19C

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - OKLAHOMA TRAFFICKING-SURVIVOR RELIEF PETITION UNDER Sec. 19C

WHAT THIS REQUEST COVERS

This packet asks an Oklahoma district court to expunge a qualifying prostitution-related charge or conviction under 22 O.S. Sec. 19c. The offense must have resulted from the petitioner being a victim of human trafficking, and the court may grant relief only for good cause. The court decides the request.

Relief is limited. It seals the identified records from public access, preserves law-enforcement access, and vacates no conviction. It does not cover every offense merely because trafficking occurred.

WHERE THIS IS FILED

File in the Oklahoma district court for the district or county holding the relevant arrest information. Copy the actual court and county into item C1 from the existing court record. If the record began in municipal court, spans counties, or has disputed docketing, ask that court's clerk or counsel to confirm the correct district filing and case type.

WHAT YOU DO

- Take this draft to legal aid or an attorney before completing it because the petition requires sensitive facts and supporting proof.
- Copy C1 through C4 from the existing court record. Do not answer them from memory.
- Complete C5 through C9 and O1 through O2 only as legal aid or an attorney advises. Identify evidence without writing a survivor narrative on this petition.
- Obtain the trafficking-nexus evidence and submit it only as counsel advises. Ask the clerk or counsel which protected-filing procedure applies before filing anything sensitive.
- Make the proposed order match the petition, but leave the Court's signature and date blank.
- Sign and date the petition personally. This packet does not sign or date it for you.

COSTS AND REQUESTING IN-FORMA-PAUPERIS STATUS

Ask the district court clerk for the current filing cost. The Oklahoma State Bureau of Investigation's arrest-record processing charge is separate from any court filing cost and does not establish a universal zero-dollar court fee.

If you cannot pay the court filing cost, 28 O.S. Sec. 152(H) supplies the in-forma-pauperis mechanism identified for this filing. Ask the clerk for the current affidavit or application and local filing instructions. You must truthfully provide the financial facts and supporting documents that procedure requests; the court decides whether you may proceed without prepaying costs. This packet does not decide that you qualify, select that request for you, or include a completed financial affidavit.

NOTICE AND HEARING

The court sets the hearing and provides 30 days' notice under 22 O.S. Sec. 19(B) to the prosecuting agency, arresting agency, Oklahoma State Bureau of Investigation, and other relevant persons or agencies. List the correct recipients in C9 so the court can direct notice. You do not certify that court notice occurred.

WHEN TO STOP AND GET HELP

- Get legal aid or an attorney before stating the trafficking connection, good-cause grounds, requested relief, or evidence.
- Stop if filing could put your safety at risk or expose sensitive information without an approved protected-filing procedure.
- Stop if there are other counts or cases and it is unclear how section 19c applies to them.
- Stop if the matter raises immigration consequences.
- Do not rely on proposed legislation or assume ordinary section 18 eligibility rules govern this narrower section 19c request.